

arbitrate. For these reasons, the motion to compel arbitration is DENIED. The Court need not reach the parties' remaining arguments.

IV. CONCLUSION

Based on the foregoing, the motion to compel arbitration is DENIED.

The Court will prepare the formal Order.

Calendar Line # 9

Case Name Baoxin Ling vs Jieqian Xing et al

Case No. 26CV489684

Motion to Strike

Before the court is plaintiff Baoxin Ling's motion to strike against first amended answer. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Baoxin Ling aka Ivy Ling ("Ling") is a professional baker and dessert chef. (Complaint, ¶7). Defendant Jieqian Xing aka Tiffany Xing ("Xing") approached plaintiff Ling with a proposal of jointly opening and operating a bakery business. (Complaint, ¶8). Plaintiff Ling agreed to participate in the venture by contributing labor, skill, time, and goodwill to the business and further agreed to make a capital contribution and to take the position of minority member and manager of the company that would operate the bakery store known as Topi Cake. (Complaint, ¶11). On August 12, 2024, defendant Xing executed and filed articles of organization for defendant Miro Holdings, LLC ("Miro") dba Topi Cake. (Complaint, ¶12).

A dispute ensued over the management and ownership of defendant Miro as well as plaintiff Ling's employment compensation and working conditions. On March 18, 2026, plaintiff Ling commenced this action against defendants Xing and Miro by filing a complaint asserting the following causes of action:

- (1) Retaliation
- (2) Wrongful Constructive Termination in Violation of Public Policy
- (3) Failure to Pay Minimum Wages
- (4) Failure to Pay Overtime Wages
- (5) Failure to Provide Meal Periods
- (6) Failure to Authorize and Permit Rest Periods
- (7) Failure to Provide Accurate Itemized Wage Statements
- (8) Waiting Time Penalties for Failure to Pay Final Wages
- (9) Failure to Maintain Payroll Records
- (10) Misclassification of Employees as Independent Contractors
- (11) Unfair Business Practices
- (12) Breach of Fiduciary Duty
- (13) Conversion
- (14) Accounting
- (15) Declaratory Relief

On May 4, 2026, defendants Miro and Xing each separately filed an answer to plaintiff Ling's complaint.

On May 28, 2026, defendant Xing filed a first amended answer to plaintiff Ling's complaint.

On May 29, 2026, defendant Miro filed a first amended answer to plaintiff Ling's complaint.

On June 8, 2026, plaintiff Ling filed the motion now before the court, a motion to strike defendant Xing's first amended answer. The docket reflects plaintiff Ling attempted to file a separate demurrer in connection with her motion to strike, but the court clerk rejected plaintiff Ling's demurrer due to the lack of a filing fee. Although defendant Xing has filed opposition to both a demurrer and motion to strike, the only motion now before the court is plaintiff Ling's motion to strike.

II. LEGAL STANDARD

Code of Civil Procedure section 431.30 states, in relevant part:

- (b) The answer to a complaint shall contain:
 - (1) The general or specific denial of the material allegations of the complaint controverted by the defendant.
 - (2) A statement of any new matter constituting a defense.
- (c) Affirmative relief may not be claimed in the answer.

III. ANALYSIS

Initially, plaintiff Ling takes issue with defendant Xing's first amended answer insofar as statements made in defendant Xing's affirmative defenses constitute redundant denials and that statements rely on and, at the same time, contradict the Operating Agreement which is attached to plaintiff Ling's complaint.

In the court's opinion, redundancy is not a basis to strike allegations found in defendant Xing's first amended answer. To the extent defendant Xing takes a different interpretation of the Operating Agreement than plaintiff Ling, the court does not view this to be improper pleading. (See *Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239 (*Aragon*)).²

Plaintiff Ling's motion to strike the words, "attorney's fees and," from paragraph 3 of the prayer in defendant Xing's first amended answer is GRANTED as "[a]ffirmative relief may not be claimed in the answer." (Code Civ. Proc., §431.30, subd. (c)). The court will not, however, strike those portions of defendant Xing's first amended answer that plaintiff Ling contends are "disguised cross-claims." Defendant Xing, represented by legal counsel, acts at her own peril in deciding whether to plead affirmative defenses rather than affirmative cross-claims.

Plaintiff Ling's motion to strike the sentence, "Defendant reserves the right to amend, supplement, modify, or withdraw any defense as discovery proceeds," from defendant Xing's first amended answer is GRANTED as irrelevant. (Code Civ. Proc., §436, subd. (a)). Irrelevant matter includes "immaterial allegations." (Code Civ. Proc., §431.10, subd. (c)). "An immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense; (2) An allegation that is neither pertinent to nor supported by an

² In *Aragon*, the court wrote, "Where an ambiguous contract is the basis of an action, it is proper, if not essential, for a plaintiff to allege its own construction of the agreement. So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, we must accept as correct plaintiff's allegations as to the meaning of the agreement." (*Aragon, supra*, 231 Cal.App.3d at p. 239). "Where a complaint is based on a written contract which it sets out in full, a general demurrer to the complaint admits not only the contents of the instrument but also any pleaded meaning to which the instrument is reasonably susceptible. While plaintiff's interpretation of the contract ultimately may prove invalid, it was improper to resolve the issue against her solely on her own pleading. In ruling on a demurrer, the likelihood that the pleader will be able to prove his allegations is not the question." (*Id.*; internal quotations removed).

otherwise sufficient claim or defense; (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., §431.10, subd. (b)).

IV. CONCLUSION

Based on the foregoing, Plaintiff Ling’s motion to strike the words, “attorney’s fees and,” from paragraph 3 of the prayer in defendant Xing’s first amended answer is GRANTED. Plaintiff Ling’s motion to strike the sentence, “Defendant reserves the right to amend, supplement, modify, or withdraw any defense as discovery proceeds,” from defendant Xing’s first amended answer is GRANTED. However, Plaintiff Ling’s motion to strike defendant Xing’s first amended answer is otherwise DENIED. The Court will prepare the formal Order.